

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,
Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of the
State of Minnesota,
Defendant.

Case No. 0:26-cv-02594-LMP-DJF

NOTICE OF APPEAL

NOTICE

1. Plaintiff-Appellant Joseph Kirchner, proceeding pro se, hereby appeals to the United States Court of Appeals for the Eighth Circuit from the Judgment in a Civil Case entered on August 20, 2026 (Doc. 28), and from the Order Granting Motion To Dismiss entered on August 20, 2026 (Doc. 27), together with all orders and rulings that merge into the Judgment, including the denial of leave to amend (Doc. 27 at 8 n.2) and the denial of leave to file a sur-reply (Doc. 27 at 4 n.1).

2. This notice is filed within the time allowed by Federal Rule of Appellate Procedure 4(a)(1)(A), computed under Rule 26(a)(1)(C), and is timely. Plaintiff-Appellant's timely motion to alter or amend the Judgment under Federal Rule of Civil Procedure 59(e), filed September 16, 2026 (Doc. 29), is pending; under Federal Rule of Appellate Procedure 4(a)(4)(B)(i), this notice becomes effective to appeal the Judgment when the order disposing of that motion is entered. Plaintiff-Appellant will file an amended notice of appeal under Rule 4(a)(4)(B)(ii) as to that order.

3. Appellant appeals the Judgment and the Order in their entirety, including the denial of leave to amend (Doc. 27 at 8 n.2) and the denial of leave to file a sur-reply (Doc. 27 at 4 n.1).

Respectfully submitted,

/s/ Joseph Kirchner

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Dated: September 21, 2026